

Ross on Crime
E
Expert evidence
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Expert evidence

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[5.2700] Admissibility

The subject must be specialised and the jury unlikely to be capable of forming a correct judgment without the assistance of an expert.

In *Makita (Aust) Pty Ltd v Sprowles* (2001) 52 NSWLR 705 (CA) Heydon JA said (at 743–744 [85]):

In short, if evidence tendered as expert opinion evidence is to be admissible, it must be agreed or demonstrated that there is a field of “specialised knowledge”; there must be an identified aspect of that field in which the witness demonstrates that by reason of specified training, study or experience, the witness has become an expert; the opinion proffered must be “wholly or substantially based on the witness's expert knowledge”; so far as the opinion is based on facts “observed” by the expert, they must be identified and admissibly proved by the expert, and so far as the opinion is based on “assumed” or “accepted” facts, they must be identified and proved in some other way; it must be established that the facts on which the opinion is based form a proper foundation for it; and the opinion of an expert requires demonstration or examination of the scientific or other intellectual basis of the conclusions reached: that is, the expert's evidence must explain how the field of “specialised knowledge” in which the witness is expert by reason of “training, study or experience”, and on which the opinion is “wholly or substantially based”, applies to the facts assumed or observed so as to produce the opinion propounded. If all these matters are not made explicit, it is not possible to be sure whether the opinion is based wholly or substantially on the expert's specialised knowledge. If the court cannot be sure of that, the evidence is strictly speaking not admissible, and, so far as it is admissible, of diminished weight. And an attempt to make the basis of the opinion explicit may reveal that it is not based on specialised expert knowledge, but, to use Gleeson CJ's characterisation of the evidence in *HG v The Queen* (1999) 197 CLR 414 (at 428 [41]), on “a combination of speculation, inference, personal and second-hand views as to the credibility of the complainant, and a process of reasoning which went well beyond the field of expertise”.

Followed and applied:

R v Bjordal (2005) 93 SASR 237 (CCA).

In *DPP v Tong* (2004) 151 A Crim R 296; 41 MVR 409 (NSW, Dowd J) his Honour characterised *Makita* (2001) 52 NSWLR 705 as follows (at [35]):

It was a factual decision made by the Court of Appeal and one that presented no question of principle. The Court simply found that there was little weight in the opinion of the expert.

For an analysis of the meaning of an “opinion”, see *Lithgow City Council v Jackson* (2011) 244 CLR 352; 85 ALJR 1130; [2011] HCA 36.

The expert evidence rule is contained in the *Uniform Evidence Act* (ACT, Cth, NT, NSW, Tas, Vic), s 79.

Other cases

Clarke v Ryan (1960) 103 CLR 486 at 491–492;

R v Chard (1971) 56 Cr App R 268;

R v Turner [1975] QB 834; [1975] 2 WLR 56; [1975] 1 All ER 70; 60 Cr App R 80;

R v O'Callaghan [1976] VR 441 (Gowans J);

R v Darrington & McGauley [1980] VR 353 at 377 (CCA);

R v Wright [1980] VR 593 (CCA).

[5.2705] Judge deciding if expert evidence required

In *R v Bartlett* [1996] 2 VR 687 (CA) Winneke P said (at 695):

In determining whether there is, or is not, a field of knowledge which requires expert assistance, the judge is to a large extent involved in an exercise of personal judgment, for which authority provides little help: see per Blackburn J in *Milirrpum v Nabalco Pty Ltd* (1971) 17 FLR 141 at 160.

[5.2710] Defence to give notice of expert evidence

Often the defence will want to call expert evidence. Some legislation requires the defence to give notice to the prosecution of that intention and to provide full particulars.

Qld: Criminal Code s 590B;

WA: *Criminal Procedure Act 2004* s 62;

NSW: *Criminal Procedure Act 1986* s 139(1);

SA: *Criminal Law Consolidation Act 1935*;

Eng: *Criminal Justice Act 2003* s 35.

See also

Disclosure (Defence duty to disclose) at [\[4.2855\]](#).

[5.2715] Qualifications

What constitutes the expert's qualifications is discussed in *R v Darrington & McGauley* [1980] VR 353 at 379 (CCA).

[5.2720] Expert must be independent

The expert must be independent. If not the court may reject the evidence.

In *Easterday v The Queen* (2003) 143 A Crim R 154 (WACCA) Steytler J said (at 216 [319]):

I formed the strong impression that Mr McGowan has become partisan in his views, to the point at which he was more advocate than independent expert.

In *R v Wright* (1997) 93 A Crim R 48 (NSW CCA) Hunt CJ at CL, with whom the others agreed, began his assessment of a psychiatrist's report in this way (at 54):

In what should more properly be an advocate's address rather than a report of someone apparently put forward as an independent expert.

See also

Phosphate Co-operative Co of Australia Ltd v Shears [1989] VR 665 at 681 (Brooking J).

[5.2725] Examples of experts and non-experts

In *R v Robb* (1991) 93 Cr App R 161 (CA) Bingham LJ said (at 164):

The old-established, academically-based sciences such as medicine, geology or metallurgy, and the established professions such as architecture, quantity surveying or engineering,

present no problem. The field will be regarded as one in which expertise may exist and any properly qualified member will be accepted without question as expert. Expert evidence is not, however, limited to these core areas. Expert evidence of finger-prints, hand-writing and accident reconstruction is regularly given. Opinions may be given of the market value of land, ships, pictures or rights. Expert opinions may be given of the quality of commodities, or on the literary, artistic, scientific or other merit of works alleged to be obscene ...

Some of these fields are far removed from anything which could be called a formal scientific discipline. Yet while receiving this evidence the courts would not accept the evidence of an astrologer, a soothsayer, a witch-doctor or an amateur psychologist

In *R v Lam* (2001) 121 A Crim R 272 (Qld CA) the accused were charged with defrauding a casino by bribing a croupier. Trial evidence was given by a Mr Tough who was experienced in baccarat and said by the prosecution to be an expert. Held (at 290 [80]–[81]) the evidence was properly admitted.

[5.2730] Basis of opinion must be given

In *R v J* (1994) 75 A Crim R 522 (Vic CCA) Brooking J said (at 531):

Nor did the witness state sufficiently the basis of his opinions. I refer again to the paper delivered by Sir Owen Dixon to the Medico-Legal Society, from which Fullagar J cited an observation in *Jenkins; Ex parte Morrison* [1949] VLR 277 at 303. An expert should explain the basis of theory or experience on which the expert conclusions are said to rest: *Haidley and Alford* [1984] VR 229 at 234-235; (1983) 10 A Crim R 1 at 7-8.

In *Trade Practices Commission v Arnotts (No 5)* (1990) 21 FCR 324; 92 ALR 527 (FCA) Beaumont J excluded opinion evidence of Dr Williams, an economist. After examining a great many cases and learned works His Honour said (at 330; 533):

In my opinion, these authorities establish that there is a rule of evidence at common law that, except in a straight-forward, uncomplicated case, where the facts are admitted and readily identified, the opinion of an expert is admissible only where the premises, that is to say, the facts, upon which his or her opinion is based, are expressly stated. It follows that, in a complex case, where facts are not readily identifiable, it is not permissible to put the whole of the transcript and documentary evidence to the witness en bloc.

In *HG v The Queen* (1999) 197 CLR 414; 160 ALR 554 Gleeson CJ said of a psychologist (at 428; 563 [41]):

[A] reading of his report, and his evidence at the committal, reveals that it was based on a combination of speculation, inference, personal and second-hand views as to the credibility of the complainant, and a process of reasoning which went well beyond the field of expertise of a psychologist.

In *R v Clark* (2005) 13 VR 75; 158 A Crim R 278 (CA) the prosecution called an expert police witness who calculated the speed of the accused's vehicle. The calculation was based on measurements and photographs of Senior Constable Oldfield who did not give evidence. The defence did not object but made a submission at the end of the whole case that the expert evidence had not been proved. Appeal dismissed. The defence had waived the objection to hearsay. A reservation was added by Nettle JA, with whom Charles JA agreed, who said (at [63]):

In this case the objection could have been allowed, consistently with fairness for both sides, by allowing the prosecutor to call Senior Constable Oldfield as a rebuttal witness (as the prosecutor proposed to the Judge when the objection was taken).

See also

R v Ping [2006] 2 Qd R 69; (2005) 159 A Crim R 90 at [43]–[46] (CA);

R v Juric (2002) 4 VR 411; 129 A Crim R 408 (at 426; 422 [19]) (CA).

Dasreef Pty Ltd v Hawchar (2011) 243 CLR 588; 85 ALJR 694; [2011] HCA 21, where the Court noted that it is unclear whether the basis of the opinion must be given in the context of the Uniform Evidence Acts. See also, *Kyluk Pty Ltd v Chief Executive Office of Environment and Heritage* [2013] NSWCCA 114.

[5.2735] Medical practitioner and patient history

In *R v Perry* (1990) 49 A Crim R 243 (NSW CCA) Gleeson CJ, with whom the others agreed, said (at 249):

Since opinion evidence involves the drawing of inferences and conclusions from facts, the admissibility of such evidence depends upon proof or admission of the facts upon which the opinion is based.

Approved:

Melbourne v The Queen (1999) 198 CLR 1; 164 ALR 465 at 71; 517 [204] per Callinan J.

In *Lee v The Queen* (1998) 195 CLR 594; 102 A Crim R 289; 72 ALJR 1484; 157 ALR 394 the court said in a joint judgment (at 604; 402; 297 [39]):

At common law, an expert (such as a medical practitioner) may give evidence about the factual basis for the opinion expressed (such as the history given by the patient) only as evidence showing the foundation for that opinion, not as evidence of the truth of the facts recounted. See eg, *Ramsay v Watson* (1961) 108 CLR 642 at 647-649.

The court then held that no change had been made to the above proposition by s 60 of the *Evidence Act 1995* (NSW). The court said (at [40]):

But there is no basis ... for concluding that s 60 was intended to provide a gateway for the proof of any form of hearsay, however remote. As has been indicated earlier in these reasons, that that was not intended is made plain by the terms of s 59 to which s 60 is an exception.

In *Ramsay v Watson* (1961) 108 CLR 642 the court said in a joint judgment (at 649):

This makes all statements made to an expert witness admissible if they are the foundation, or part of the foundation, of the expert opinion to which he testifies; but, except they be admissible under the first rule, such statements are not evidence of the existence in fact of past sensations, experiences and symptoms of the patient. Hearsay evidence does not become admissible to prove facts because the person who proposes to give it is a physician. And, if the man whom the physician examined refuses to confirm in the witness box what he said in the consulting room, then the physician's opinion may have little or no value, for part of the basis of it has gone. Each case depends on its own facts.

In *R v Qutami* (2001) 127 A Crim R 369 (NSW CCA) Smart AJ delivering the leading judgment said (at 377 [59]):

There has been a noticeable and disturbing tendency of more recent years for prisoners on a sentence hearing not to give evidence and to rely on statements made to experts. Prisoners should realise that if this course is taken great caution will be exercised in respect of the weight, if any, given to those statements.

The expert in *R v Qutami* (2001) 127 A Crim R 369 gave evidence of cultural matters.

Yet statements to psychiatrists may need no confirmation. In *Gordon v The Queen* (1982) 41 ALR 64 (HC) Gibbs CJ, Mason, Murphy, Aicken and Brennan JJ, refusing special leave to appeal, said:

In the case of psychiatric evidence, statements made to the psychiatrist may be themselves original evidence, in which case they need no confirmation in the witness box.

[5.2740] Opinion evidence confined

Opinion evidence must be confined to matters which are the subject of the witness's special study or knowledge: *Transport Publishing Co v The Literature Board of Review* (1956) 99 CLR 111 at 119; *Wood v The Queen* [2012] NSWCCA 21.

[5.2745] Expert evidence uncontradicted

Expert evidence should not be rejected when it is uncontradicted, unless it is not in accordance with the remainder of the evidence:

Hone v Western Australia (2007) 179 A Crim R 138 (WA CA): insanity in a murder case.

Middleton v The Queen (2000) 114 A Crim R 258 (at 263–264 [14]–[23]) (WA CCA).

R v Nielsen [1990] 2 Qd R 578; (1990) 47 A Crim R 269 (CCA) – the expert evidence seemed not to accord with the other evidence. It was found there was no diminished responsibility and the appeal was dismissed.

R v Michaux [1984] 2 Qd R 159; (1984) 13 A Crim R 173 (CCA) – if the expert evidence is equivocal it need not be accepted (insanity of doctor on charges of sexual offences against female patients).

R v Chester [1982] Qd R 252; (1981) 5 A Crim R 296 (CCA) – one psychiatrist gave evidence in a diminished responsibility case. On appeal, murder verdict reduced to manslaughter.

Taylor v The Queen (1978) 45 FLR 343; 22 ALR 599 (FCA) – automatism in a break and enter case.

R v Dick [1966] Qd R 301 (CCA).

Where experts differ

R v Sodo (1975) 61 Cr App R 131.

An expert may rely on the works of others

R v Abadom [1983] 1 WLR 126; [1983] 1 All ER 364; 76 Cr App R 48 at 130–131, 367–369, 50–53 (CA).

Jeffrey v The Queen (1991) 60 A Crim R 384 at 387-390 (Tas CCA).

PQ v Australian Red Cross Society [1992] 1 VR 19 at 34–35 (McGarvie J).

Voice

R v McHardie & Danielson (1983) 2 NSWLR 733; 10 A Crim R 51 (NSW CCA).

Handwriting

See **Handwriting** at [8.900].

Policemen as experts

Driving

R v Oakley (1980) 70 Cr App R 7 (CA);

R v Murphy [1980] 1 QB 434; 2 All ER 325; 71 Cr App R 33 (CA).

Drugs

Marchesano v The Queen (2000) 116 A Crim R 237 (WA CCA);

Marinovich v The Queen (1990) 46 A Crim R 282 at 301 (WA CCA);

Anderson v The Queen (1992) 60 SASR 90; 64 A Crim R 312 at 103, 324 (CCA);

R v Morrison (2002) 136 A Crim R 222 at 229 [23] (SA CCA);

R v Fazio (1997) 69 SASR 54; 93 A Crim R 522 (CCA).

See also

Drugs (Evidence of street value) at [4.5350].

[5.2750] Psychologist

In *R v Haidley & Alford* (1984) VR 229; 10 A Crim R 1 (CCA) the evidence of the psychologist was excluded. The ruling was upheld on appeal. It was held:

- the witness had no proper expertise;
- the factual basis of his opinion was not verified;

- he should not give evidence of the question which falls to be decided by the jury.

There are conflicting authorities on whether psychologists can give expert evidence regarding the mental states of witnesses or defendants. The preferred approach is set out in [R v Bassi \(2021\) 293 A Crim R 149; \[2021\] QCA 250](#) at [61], as follows:

In our respectful opinion, the question whether evidence of a psychologist's diagnosis is admissible as expert evidence has to be decided on a case by case basis and, in general, it will not be open for a judge to conclude that evidence of that kind is inadmissible just because it is to be given by a psychologist rather than by a psychiatrist. The admissibility of the evidence will depend entirely upon the result of the application of the established principles for the determination of the admissibility of expert evidence and the admissibility of such evidence is a question of fact.

See also

[R v Pinfold \(1983\) 76 Cr App R 271 \(CA\)](#).

A psychologist can give evidence that the accused did not have the capacity to make a confession: [Murphy v The Queen \(1989\) 167 CLR 94; 40 A Crim R 361; 86 ALR 35 \(HC\)](#).

In [Masters v The Queen \[2019\] NSWCCA 233](#) at [12] it was held that “in some cases, in spite of the absence of a medical degree, a sentencing Judge may find a psychologist’s opinion more persuasive than that of medically qualified experts.”

[5.2755] Other opinion evidence sought to be led

Facial and body mapping

Facial mapping may be a field of specialised knowledge but not body mapping.

[Murdoch v The Queen \(2007\) 167 A Crim R 329](#) at [246]–[300] (NT CCA);

[R v Tang \(2006\) 65 NSWLR 681; 161 A Crim R 377; \[2006\] NSWCCA 167 \(CCA\)](#).

Forensic odontology

Trial evidence of forensic odontology was held to be wrongly admitted in:

[R v Carroll \(1985\) 19 A Crim R 410 \(Qld CCA\)](#);

Lewis v The Queen (1987) 88 FLR 104; 29 A Crim R 267 (NT CCA). (Note that the FLR does not include the judgment of Maurice J.)

EMDR (Eye movement desensitising and reprocessing) evidence given after

R v Jamal (1993) 69 A Crim R 544 (NSW, Mathews J);

R v Tillott (1995) 38 NSWLR 1; 83 A Crim R 151 (NSW CCA).

See also

EMDR at [5.900].

Evidence given by witness after hypnosis

R v McFelin [1985] 2 NZLR 750;

R v Jenkyns (1993) 32 NSWLR 712; 71 A Crim R 1 (Hunt CJ);

R v Haywood (1994) 73 A Crim R 41 (Tas, Wright J) and on appeal;

R v Roughley (1995) 5 Tas R 8; 78 A Crim R 160 (Tas CCA).

See also

Hypnosis at [8.2500].

Evidence of the capacity of an accused to form intent is not permitted

R v Turner [1975] QB 834; [1975] 2 WLR 56; [1975] 1 All ER 70; 60 Cr App R 80 (CA).

R v O'Callaghan [1976] VR 441 (CCA);

R v Honner (1977) Tas SR 1 (Chambers J);

R v Carn (1982) 5 A Crim R 466 (Vic CCA);

R v Fowler (1985) 39 SASR 440; 17 A Crim R 16 (SA CCA).

RST v Western Australia [2016] WASCA 59 (expert evidence that accused did not have a “sexually deviant preoccupation” was rejected).

Expert evidence shown after trial to be suspect

R v Ward [1993] 1 WLR 619; [1993] 2 All ER 577; (1993) 96 Cr App R 1;

R v McIlkenny [1992] 2 All ER 417; (1991) 93 Cr App R 287;

R v Maguire [1992] QB 936; [1992] 2 All ER 443; (1992) 94 Cr App R 133;

[5.2760] The ultimate issue

In *R v Palmer* [1981] 1 NSWLR 209; (1980) 1 A Crim R 458 (CCA) banks had been robbed and photographs of the robber were taken by security cameras. Persons not present at the crimes identified the person in the photographs as resembling the accused. Glass JA said (at 214; 464):

The third ground argued was that the tender of such evidence violated a supposed rule that no opinion evidence, whether expert or non-expert, may be directed to an ultimate issue for determination by the jury. I question that there is any such rule in the terms which have been submitted to us. It is a commonplace experience in trials, both civil and criminal, before juries for evidence of opinion to be received from both experts and non-experts in relation to ultimate issues for jury determination. I need only say, so far as expert evidence is concerned, that this happens all the time with respect to scientific, medical and handwritten evidence and so far as concerns non-expert opinion, that this too, is receivable for the purposes of identification or proof of speed. The true rule, in my opinion, is that no evidence can be received upon any question, the answer to which involves the application of a legal standard. It is not possible, for example, to tender evidence that a defendant was negligent, that a deceased lacked testamentary capacity or that the accused was provoked. These are questions, the answers to which can only be given by the jury after the judge has instructed them upon the rule of law which they must apply.

In *R v Fowler* (1985) 39 SASR 440; 17 A Crim R 16 (CCA) Matheson J said (at 453; 27):

Except in very rare cases, such as where insanity is pleaded, an expert can not be asked the very question which falls to be decided by the jury, a question which laymen can as well answer as a psychiatrist (see *Cavenett v Chambers* [1968] SASR 97 at 104-105; *Samuels v Flavel* [1970] SASR 256 at 261-262; *R v Chard* (1971) 56 Cr App R 268 *R v Darrington* [1980] VR 353; (1979) 1 A Crim R 124; *R v Carn* (1982) 5 A Crim R 466; *R v Haidle & Alfordy* [1984] VR 229).

The ultimate issue rule does not apply in jurisdictions governed by the Uniform Evidence Acts; for a discussion, see *Amaca Pty Ltd v King* [2011] VSCA 447 at [113].

See also

Smith v The Queen (2001) 206 CLR 650; 125 A Crim R 10; [2001] HCA 50;

R v Wright [1980] VR 593 at 609 (CCA).

[5.2765] Conflict in evidence

Where there is conflict between the evidence of expert witnesses the jury must resolve that conflict:

Hocking v Bell (1945) 71 CLR 430 at 440 per Dixon J (in dissent on other matters);

Jemielita v The Queen (1995) 81 A Crim R 409 at 425ff (WA CCA).

See also

Blackie v Police [1966] NZLR 910 (CA);

R v McEndoo (1980) 5 A Crim 52 (Qld CCA);

R v Haidley & Alford (1984) VR 229; (1983) 10 A Crim R 1 at 235, 7–8 (CCA);

R v Sender (1982) 44 ALR 139 at 143–144 (Tas, Everett J);

Cameron v The Queen (1990) 2 WAR 1; 47 A Crim R 397 (CCA).

[5.2770] Test for admissibility

In *R v Bonython* (1984) 38 SASR 45; 15 A Crim R 364 (CCA) King CJ said (at 46; 366):

Before admitting the opinion of a witness into evidence as expert testimony, the judge must consider and decide two questions. The first is whether the subject matter of the opinion falls within the class of subjects upon which expert testimony is permissible. This first question may be divided into two parts: (a) whether the subject matter of the opinion is such that a person without instruction or experience in the area of knowledge or human experience would be able to form a sound judgment on the matter without the assistance of witnesses possessing special knowledge or experience in the area, and (b) whether the subject matter of the opinion forms part of a body of knowledge or experience which is sufficiently organised or recognised to be accepted as a reliable body of knowledge or experience, a special acquaintance with which by the witness would render his opinion of assistance to the court. The second question is whether the witness has acquired by study or experience sufficient knowledge of the subject to render his opinion of value in resolving the issues before the court.

[5.2775] Aboriginal tracker

In *R v Harris* (1997) 7 NTLR 1; 94 A Crim R 454 Bailey J ruled that an Aboriginal tracker was qualified by experience in tracking. But because the prosecution sought to tender a comparison with an inked footprint in which the witness had no experience, the evidence was excluded.

See also

Pat Lowe, *Hunters and Trackers of the Australian Desert* (Rosenberg Publishing, 2002).

[5.2780] Judge's duties when opinion evidence is wrongly given

In *R v Anderson* (2000) 1 VR 1; 111 A Crim R 19 (CA) Winneke P giving the leading judgment said (at 25; 44 [59]):

The trial judge has a continuing responsibility, particularly in a criminal trial where a witness has been allowed to express an opinion on a critical issue, to ensure that such opinion is not left for the jury's consideration where it has become clear that the person who has expressed it has no qualification to do so, or has provided no factual or scientific foundation for the opinion expressed (see *Bugg v Day* (1949) 79 CLR 442 at 456-457 per Latham CJ; *R v Inch* (1990) 91 Cr App R 51 at 54; *Marquard* (1993) 85 CCC (3d) 193 at 225). Although it is, of course, true that it is for the judge to decide whether an expert's opinion is admissible, and for the jury to decide whether the opinion is credible and what weight it should be given, it is also true that an opinion is only as good as the factual or scientific basis upon which it is expressed; and if no such basis is given or, if given, can be seen to be speculative or irrelevant to the opinion expressed, then the opinion will be worthless (*R v Turner* [1975] 1 QB 834 at 840(QB); (1974) 60 Cr App R 80 at 82 per Lawton LJ). In that sense the existence of such a foundation, or proper foundation, for the expression of opinion is a matter relevant to be taken into account on the question of admissibility (*R v Bonython* (1984) 38 SASR 45; 15 A Crim R 364 at 48; 367 per King CJ; *R v J (No 2)* (1994) 75 A Crim R 522 at 531-532, per Brooking J).

See also *Lang v The Queen* [2023] HCA 29.

[5.2785] Extortion

see **Blackmail and Extortion** at [2.2700].

[5.2790] Defence notice

Some legislation requires the defence to give notice of intention to call expert evidence.

Qld: Criminal Code s 590B;

NSW: *Criminal Procedure Act 1986* s 139(2);

SA: *Criminal Law Consolidation Act 1935*.

[5.2795] Writing

I Freckelton and H Selby, *Expert Evidence* (subscription service, Thomson Reuters).

See also

Disclosure at [\[4.2800\]](#).

[5.2800] Uniform Evidence Acts

Opinion evidence is governed in the UEA by ss 76 and 80 and the rules of admissibility are similar to that discussed at common law above, except that opinions relating to matters of knowledge are admissible and the ultimate issue rule does not apply (see s 80). There is some uncertainty whether the basis rule applies in the context of the UEA: *Kyluk Pty Ltd v Chief Executive Office of Environment and Heritage* (2013) 298 ALR 532; [2013] NSWCCA 114.

Leading UEA opinion evidence cases are:

R v Marsh [2005] NSWCCA 331 (meaning of opinion);

Lithgow City Council v Jackson (2011) 244 CLR 352; 85 ALJR 1130; [2011] HCA 36 (meaning of opinion);

R v Tang (2006) 65 NSWLR 681; 161 A Crim R 377; [2006] NSWCCA 167; *Honeysett v The Queen* (2014) 253 CLR 122; 237 A Crim R 589; [2014] HCA 29 (*specialised knowledge*); *Godfrey v New South Wales (No 1)* (2003) 25 NSWCCR 291; [2003] NSWSC 160 (expert qualifications); and

Dasreef Pty Ltd v Hawchar (2011) 243 CLR 588; 85 ALJR 694; [2011] HCA 21 (area of expertise).